

Mohan Kumar Agrawal v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 September 2013 · WRIT - C No. - 45269 of 2013 · **Writ disposed; bill dispute relegated to clause 6.5.**

HEADNOTE

A consumer challenging an electricity bill and the demand notice issued on it must complain under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, to the Executive Engineer. The High Court declined to quash the bill in writ jurisdiction and directed that a 6.5 complaint, if filed, be considered and disposed of preferably within one month.

FACTUAL SUMMARY

Mohan Kumar Agrawal petitioned the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. and others to quash a demand notice following an electricity bill dated 7 March 2013 for Rs.22,59,664. He alleged the bill was wrongly generated after a change in the licensee's billing software. After a 2 September 2013 listing for instructions, the Division Bench heard counsel for the petitioner, the discom, and the State on 9 September 2013. His real grievance was the bill itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Where the writ petitioner is aggrieved by an electricity bill and the demand notice issued consequent to it, the remedy is to file a complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, to the Executive Engineer; the High Court will not quash the bill and instead directs that such a complaint, if filed in accordance with paragraph 6.5, be considered and expeditiously disposed of preferably within one month. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer challenging an electricity bill and the demand notice issued on it must complain under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, to the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 7.3.2013 WAS INCORRECTLY ISSUED BECAUSE OF A CHANGE IN BILLING SOFTWARE

Left to the Executive Engineer on a clause 6.5 complaint. ¶ 1